

02:00 PM **LINE 7**

25-CIV-00601

KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL.

KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO SE
DANIELLE K. LEWIS

Plaintiff's Second Amended Motion to Compel Further Responses Regarding the Defendant's Responses to Request for Admissions Set 5

TENTATIVE RULING:

Plaintiff has not provided the complete address for the hearing. Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, CA 94401. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice “must specify” the location of the hearing].)

In its discretion, the court will consider the motion, and the reply, each of which was filed a day late. (Code Civ. Proc., § 1005, subd. (b).) Defendant waived objections to the tardiness of the motion by timely filing an opposition. (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 929 [“It is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of the motion.”].) Plaintiff is admonished to comply with the California Rules of Court.

The hearing of plaintiff Kevin Ramos' *Second Amended ... Motion to Compel Further Responses Regarding the Defendant's Responses to Request for Admissions Set 5* (Motion) is **CONTINUED to August 12, 2026 at 2:00 p.m.**

A. Background

In his Second Amended Complaint (SAC), plaintiff alleges that on May 17, 2024, he suffered injury and damages from having been assaulted by a fellow passenger on a bus operated by defendant San Mateo County Transit District (SamTrans).

The court granted two anti-SLAPP motions brought against plaintiff's First Amended Complaint, one by SamTrans and defendants Steve Wagman and Marshall Rush (Order, signed on October 22, 2025), and the other by defendant Ann Lee (Order, signed on November 4, 2025), as to the second through eighth causes of action. The only remaining cause of action in the SAC, for “Premises Liability/Negligent Security,” is pled solely against SamTrans.

Defendant responded to plaintiff's Requests for Admission Set #5 on December 16, 2025. (Ramos Decl., ¶ 2.) Plaintiff filed an initial version of the instant “Second Amended ... Motion to Compel Further Responses Regarding the Defendant's Responses to Request for Admissions [sic] Set 5” (Motion) on January 8, 2026. Plaintiff filed an amended version of that initial motion on January 12, 2026. However, the court *sua sponte* ordered the motion concerning the Requests for Admission (RFAs) Set No. 5 off-calendar, and scheduled an IDC instead. (Order, January 16,

2026.) A pdf of a motion directed to compelling further responses to the RFA Set No. 5, a declaration, and a separate statement were filed on March 11, 2026. A first amended version of that pdf was filed on March 25, 2026, and then the instant Motion, which includes a declaration and separate statement was filed on June 30, 2026. The court takes the moving papers filed most recently to be the operative ones and disregards those filed earlier.

The court addressed the initial version of the Motion at an IDC. (Minute Order, February 26, 2026.) There, the Commissioner found that:

it appears that the discovery herein substantially relates to Plaintiff hoping to learn how Defendant went about preparing its prior re[sp]onses, what steps it took to search for certain requested documents or items, and so forth. Plaintiff's stated overarching goal in pursuing these lines of inquiry appears to be to find grounds to bring a motion for sanctions against Defendant for Plaintiff's belief that Defendant has engaged in abuse of the discovery process. Plaintiff's belief appears to have origins in his efforts to discover whether any incident reports or audio recordings existed as to the incident which is the underlying subject of this lawsuit.

(Minute Order, at pp. 1-2.) The Commissioner noted that, *inter alia*, "Plaintiff indicated at the IDC that he would seek issue and/or terminating sanctions" (*id.*, at p. 2), but that "Judge Healy declined to impose monetary sanctions upon Defendant" in ruling upon Plaintiff's earlier motion to compel further responses to his Request for Production (RFP), Set One. (*Id.*, at p. 3; see Minute Order, December 17, 2025.) Accordingly, the Commissioner noted that Plaintiff's further pursuit of motions for issue or terminating sanctions "would be without merit." (Minute Order, February 26, 2026, at p. 3.)

Plaintiff brings the instant Motion seeking to compel defendant to respond further to all 52 RFAs in Set No. 5.

B. The Court Lacks Sufficient Evidence to Rule Upon the Motion

Defendant argues, in part, that "Plaintiff submitted a declaration for additional discovery with this set of discovery," but that the declaration fails to comply with statutory requirements, including those in Code of Civil Procedure, section 2033.040. (Opp., at pp. 4:27-6:5.) The Declaration of Danielle K. Lewis in support of defendant's Opposition states that a copy of plaintiff's RFAs Set No. 5 is attached as Exhibit C. (Lewis Decl., ¶ 5.) However, defendant failed to attached Exhibit C — or any of the other exhibits referenced — to the Lewis Declaration. Thus, plaintiff's declaration for additional discovery is not before the court.

In his Reply, plaintiff does not address the issue, instead arguing that it is simple to respond to an RFA with a single word and a signature, while each of defendant's objections runs about 100 words.

Plaintiff has submitted as an exhibit to the Motion his "post-February 26 2026 informal discovery conference memo & briefing," which includes a "Declaration for Additional Discovery" regarding his special interrogatories, apparently Set 13. (Motion, exh. 47, at pp. 30-

31.) However, plaintiff has not submitted a copy of a declaration as to RFAs Set No. 5. (Code Civ. Proc., §§ 2033.040, 2033.050.)

The number of RFAs propounded by plaintiff and the sufficiency of his declaration justifying that number are relevant to the court's disposition of the Motion. Neither party has submitted evidence supporting their arguments on these issues.

The court therefore orders as follows:

- The hearing of this motion is continued to August 12, 2026 at 2:00 p.m.
 - No later than July 29, 2026, defendant shall file a supplemental declaration with the exhibits inadvertently omitted from its previous supporting declaration, along with any declaratory statements or exhibits evidencing the total number of requests for admission served by plaintiff in this matter. Defendant may concurrently file a supplemental opposition brief, not to exceed ten pages in length, addressing the totality of the requests for admission propounded by plaintiff upon defendant in this matter, and the sufficiency of plaintiff's declaration justifying additional discovery as to his requests for admission.
 - No later than August 5, 2026, plaintiff may likewise file a supplemental reply brief not to exceed ten pages, and a supplemental declaration addressing those same issues.
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02:00 PM **LINE 8**

25-CIV-00601

KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL.

KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO SE
DANIELLE K. LEWIS

Plaintiff's Third Amended Motion to Compel Further Responses Regarding the Defendant's Responses to Special Interrogatories Set 12

TENTATIVE RULING:

Plaintiff Kevin Ramos has moved to compel further responses from defendant San Mateo County Transit District to Plaintiff's Special Interrogatories, Set No. 12 (SROGs).

Plaintiff's Third Amended Motion to Compel Further Responses to SROGs Set No. 12 is **CONTINUED** to August 12, 2026 at 2:00 p.m.

A. Background

In his Second Amended Complaint (SAC), plaintiff alleges that on May 17, 2024, he suffered injury and damages from having been assaulted by a fellow passenger on a bus operated by defendant San Mateo County Transit District (SamTrans).

The court granted two anti-SLAPP motions brought against plaintiff's First Amended Complaint, one by SamTrans and defendants Steve Wagman and Marshall Rush (Order, signed on October 22, 2025), and the other by defendant Ann Lee (Order, signed on November 4, 2025), as to the second through eighth causes of action. The only remaining cause of action in the SAC, for "Premises Liability/Negligent Security," is pled solely against SamTrans.

Plaintiff served his SROGs Set No. 12 on defendant on November 18, 2026, along with his SROGs Set No. 13 and Requests for Admission Set No. 5. Defendant responded to all three sets of discovery on December 16, 2025. (Ramos Decl., ¶ 2.) Plaintiff initially filed a motion to compel further responses on all three sets of discovery to January 8, 2026. However, the Court *sua sponte* ordered the motion off-calendar and scheduled an IDC instead. (Order, January 16, 2026.) The parties did not resolve the discovery dispute at the IDC and Plaintiff filed a motion to compel on March 11, 2026. Plaintiff filed a "First Amended" and Second Amended" version of the motion on March 26, 2026, and a "Third Amended" version on June 30, 2026. The court takes the moving papers filed most recently to be the operative ones and disregards those filed earlier.

The Court scheduled an IDC hearing for plaintiff's SROGs Set No. 13 and RFAs Set No. 5 for February 26, 2026, and a hearing for SROGs Set No. 12 and plaintiff's Form Interrogatories Set No. 2, on March 16, 2026. However, the discussions at the February 26, 2026 hearing
